

such curator is to sue or defend suits, sign discharges for income or debts, and generally manage the convict's property, make allowances for the maintenance of a wife or child, &c., and by sect. 25 may sell any personal property of the convict, but not without the sanction of a Justice or a Court of competent jurisdiction.

SECTION II.

WHO MAY BE A TRUSTEE.

Who may be a trustee. — The question who may be a trustee involves a variety of considerations. Thus, a person to be a trustee must be capable of *taking* and *holding* the property of which the trust is declared.¹ Again, the trustee should be competent to deal with the estate as required by the trust or as directed by the beneficiaries, whereas certain classes are by nature or by the rules of law under disability. Again, the execution of the trust may call for the application or judgment * and a knowledge of busi- [*30] ness. And again, the trustee ought to be amenable to the jurisdiction of the Court which administers trusts. In general terms, therefore, a trustee should be a person capable of taking and holding the legal estate, and possessed of natural capacity and legal ability to execute the trust, and domiciled within the jurisdiction of a Court of Equity. With this outline we proceed to consider certain exceptional cases where the fitness for the trusteeship may more or less be called into question.

1. **The Crown.** — The *Sovereign*² may sustain the character of a trustee, so far as regards the *capacity* to take the estate, and to execute the trust; but great doubts have been enter-

¹ A trust will never fail for want of a trustee, and any one who can hold a legal title may be a trustee. *Kerr v. Day*, 14 Pa. St. 114; *Gibbs v. Marsh*, 2 Met. 243; *King v. Donnelly*, 5 Paige, 46; *Treat's App.* 30 Conn. 113; *Malin v. Malin*, 1 Wend. 625; *Huntly v. Huntly*, 8 Ired. Eq. 250; *Adams v. Adams*, 21 Wall. 186; *Piatt v. Vattier*, 9 Pet. 405; *Livingston v. Livingston*, 2 John. Ch. 537; *Bundy v. Bundy*, 38 N. Y. 410; *Dunbar v. Soule*, 129 Mass. 284.

² A state may be a trustee. *Hill on Trustees*, 50; *Briggs v. Light-Boats*, 11 Allen, 157; *McDonogh's Ex'rs v. Murdoch*, 15 How. 367. But see as to the United States, *Levy v. Levy*, 33 N. Y. 97; *Shoemaker v. Commissioners*, 36 Ind. 178.